BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **JOSEELYN ROJO, in her individual capacity;** **GARY NOGUCHI, in his individual capacity;** **JEFF MACOMBER, Secretary of CDCR,** **in his official capacity;** **CALIFORNIA DEPARTMENT OF** **CORRECTIONS AND REHABILITATION;** **and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY, AND INJUNCTIVE RELIEF** (1) Tom Bane Civil Rights Act (Cal. Civ. Code Sec. 52.1); (2) Intentional Misrepresentation; (3) Intentional Infliction of Emotional Distress; (4) Negligent Misrepresentation; (5) Negligence; (6) Declaratory & Injunctive Relief (Code Civ. Proc. Sec. 1060) *[Unlimited Civil -- Exceeds $35,000]* **[JURY TRIAL DEMANDED]**

INTRODUCTION

1. This is a civil rights and tort action arising from Defendants' deliberate, deceptive, and coercively timed denial of Plaintiff BRENDAN NGEHSI NEWANFORBI's request to attend his parents' Nineteenth Church Anniversary -- a significant religious observance held in Reno, Nevada from November 21 through November 23, 2025. Defendants Joseelyn Rojo, a California Department of Corrections and Rehabilitation ("CDCR") Parole Agent assigned to the Stockton Parole Unit, and Gary Noguchi, a CDCR Supervising Parole Agent with final authority over parole travel approvals, did not deny the request on its merits, in writing, or in a manner that

permitted any meaningful response. Instead, after four days of repeated written and oral assurances that the request was being processed through proper administrative channels, Rojo arrived unannounced at Plaintiff's residence at 1455 Cat Tail Drive, Stockton, California, on November 21, 2025 -- at the precise moment Plaintiff's family was physically loading vehicles and departing for Reno -- and verbally delivered a denial premised on an unwritten, unpublished, and never-disclosed "emergency or death in the family" office policy. The timing was not accidental. It was engineered to eliminate every avenue of administrative review, appeal, supervisory escalation, or alternative accommodation.

2. The denial was not a routine exercise of parole-supervision discretion. It was the calculated end-product of four days of affirmative misrepresentation. On November 19, 2025, Rojo texted Plaintiff: "Okay thank you I'll submit that pass and see what administration says." That representation, captured in a contemporaneous text message and attached as Exhibit A, was false when made or, in the alternative, was made with reckless indifference to its truth. On information and belief, the denial had been decided internally before that text was sent, or shortly thereafter, and was deliberately concealed from Plaintiff for the purpose of inducing him to forbear from seeking supervisory review, contacting a chaplain, contacting counsel, or making any other contingency arrangement until the window for relief had closed. By the time Rojo physically appeared on Plaintiff's doorstep on November 21, the church anniversary was hours away, Plaintiff's family was in the driveway, the Greyhound ticket had been purchased, the Reno hotel had been booked, and every practical option had been foreclosed.

3. Defendants' conduct constitutes (i) coercive interference with Plaintiff's state and federal constitutional rights of religious exercise, due process, and familial association in violation of the Tom Bane Civil Rights Act, Cal. Civ. Code section 52.1; (ii) intentional misrepresentation and deceit in violation of Civil Code sections 1709 and 1710(1); (iii) intentional infliction of emotional distress; (iv) negligent misrepresentation in the alternative, under Civil Code section 1710(2); (v) negligence for breach of mandatory ministerial duties owed

under CDCR's own published travel-approval procedures; and (vi) gives rise to a present, justiciable controversy supporting declaratory and injunctive relief against the policy itself. CDCR is vicariously liable under Government Code section 815.2 for the in-scope conduct of its parole agents. Punitive damages are sought only against the named individual Defendants under Civil Code section 3294. Statutory treble damages are sought under Civil Code section 52(a) for the Bane Act violation.

4. Plaintiff has complied with the California Government Claims Act (Gov. Code sections 810 et seq.). A verified claim was timely presented to the California Government Claims Program on May 19, 2026, and assigned Confirmation Number 26051930365359 (Exhibit E). More than forty-five (45) days have elapsed since presentation without action by the Department of General Services, Office of Risk and Insurance Management. The claim is deemed rejected by operation of law under Government Code section 912.4(c), and this action is timely filed within the limitations period of Government Code section 945.6.

SUMMARY OF CLAIMS

5. **Scope of this action.** This action concerns only state-law tort and statutory claims arising from the November 17 -- 21, 2025 travel-approval episode. It does not litigate the underlying 2018 judgment of conviction, the validity of Plaintiff's parole term, or any other collateral proceeding. Plaintiff alleges in this Court the following six causes of action:

(i) **Tom Bane Civil Rights Act** (Cal. Civ. Code section 52.1) -- against Rojo and Noguchi for coercive interference with state and federal constitutional rights of religious exercise (U.S. Const. amend. I; Cal. Const. art. I, section 4), due process (U.S. Const. amend. XIV; Cal. Const. art. I, section 7(a)), and familial association;

(ii) **Intentional Misrepresentation/Deceit** (Cal. Civ. Code sections 1709,

1710(1)) -- against Rojo for knowingly false representations made with intent to induce reliance and to foreclose alternative remedies;

(iii) **Intentional Infliction of Emotional Distress** -- against Rojo and Noguchi for extreme and outrageous conduct, including delivering a previously concealed denial at the front door at the moment of family departure;

(iv) **Negligent Misrepresentation** (Cal. Civ. Code section 1710(2)) -- against Rojo in the alternative;

(v) **Negligence** (Gov. Code sections 815.2, 820) -- against all Defendants for breach of mandatory ministerial duties of timely notice, written decision, and individualized assessment owed under CDCR's own travel-approval policies; and

(vi) **Declaratory and Injunctive Relief** (Code Civ. Proc. section 1060) -- against CDCR and Defendant Macomber in his official capacity, to prohibit ongoing enforcement of an unpromulgated, unwritten travel-restriction policy that is non-neutral as applied to religious exercise.

6. Plaintiff seeks: (a) compensatory damages for severe emotional distress, deprivation of religious participation and familial association, and out-of-pocket economic loss; (b) statutory treble damages under Civil Code section 52(a); (c) punitive and exemplary damages against the named individual Defendants under Civil Code section 3294; (d) attorneys' fees and costs under Civil Code sections 52(b) and 52.1(i); (e) a judicial declaration that the unwritten "emergency or death" travel policy applied to Plaintiff is unenforceable as an underground regulation prohibited by Government Code section 11340.5 and as applied non-neutrally to religious exercise; and (f) permanent injunctive relief requiring CDCR to provide timely, written, individualized assessments of all parole travel requests implicating fundamental rights.

I. JURISDICTION AND VENUE

7. **Subject-matter jurisdiction.** This Court has subject-matter jurisdiction pursuant to California Constitution, article VI, section 10, and Code of Civil Procedure section 410.10. The amount in controversy exceeds $35,000, exclusive of interest and costs, and the action is properly designated as Unlimited Civil under Code of Civil Procedure section 88.

8. **Venue.** Venue is proper in San Joaquin County pursuant to Code of Civil Procedure section 395(a) and Government Code section 955.3 because all events and omissions giving rise to Plaintiff's claims occurred in the City of Stockton, San Joaquin County, California, including without limitation the November 17, 2025 submission of the travel-request packet at the Stockton Parole Unit (612 N. Carlton Avenue, Stockton, California 95203); the November 19, 2025 telephone and text-message representations by Defendant Rojo; the November 19 -- 20, 2025 concealment and induced reliance; and the November 21, 2025 in-person delivery of the verbal denial at Plaintiff's residence at 1455 Cat Tail Drive, Stockton, California 95204.

9. **Government Claims Act compliance.** Plaintiff has fully complied with the Government Claims Act. A verified claim describing the same incident, defendants, dates, and damages alleged herein was timely presented to the California Government Claims Program on May 19, 2026 (Exhibit E, Confirmation Number 26051930365359), well within the six-month limitations period of Government Code section 911.2. The claim identified CDCR as the state department against which the claim was made, identified the date of incident, set forth the dollar amount claimed ($1,000,000), and was accompanied by payment of the statutory filing fee. (Gov. Code sections 910, 910.4.) The Government Claims Program has not, as of the date of this Complaint, given written notice of action on the claim. Under Government Code section 912.4(c), the claim is therefore deemed to have been rejected on the forty-fifth day following its presentation. This action is timely commenced within the two-year period of Government Code

section 945.6(a)(2).

10. **Scope of relief.** This action is confined to state statutory and common-law tort claims arising under the laws of the State of California. Plaintiff does not seek relief under federal law or the United States Constitution in this Court. The claims pleaded herein are properly brought in this Court pursuant to California Constitution, article VI, section 10, and Code of Civil Procedure section 410.10, and are not subject to removal on any federal question ground.

II. PARTIES

11. **Plaintiff.** Plaintiff BRENDAN NGEHSI NEWANFORBI is, and at all relevant times was, an adult individual residing in Stockton, San Joaquin County, California. At all times relevant to this Complaint, Plaintiff was on active parole under the supervision of CDCR, assigned to the Stockton Parole Unit. Plaintiff is, and at all relevant times was, a sincerely held adherent of the Christian faith. Plaintiff brings this action in pro per.

12. **Defendant Rojo.** Defendant JOSEELYN ROJO ("Rojo") was, at all relevant times, a Parole Agent employed by CDCR and assigned as Plaintiff's supervising parole agent at the Stockton Parole Unit, 612 N. Carlton Avenue, Stockton, California 95203. Rojo acted under color of state law and within the course and scope of her employment as to the conduct alleged. As to the willful, malicious, and deceptive aspects of her conduct, she also acted outside any lawful exercise of discretion and is personally liable. She is sued in her individual capacity for monetary, punitive, and statutory damages.

13. **Defendant Noguchi.** Defendant GARY NOGUCHI ("Noguchi") was, at all relevant times, a Supervising Parole Agent employed by CDCR with final approval authority over parole travel requests at the Stockton Parole Unit, including Plaintiff's November 17, 2025 request to travel to Reno, Nevada for a religious observance. Noguchi acted under color of state law and

within the course and scope of his employment as to the conduct alleged, and is sued in his individual capacity for monetary, punitive, and statutory damages. To the extent his approval (in fact, denial) of Plaintiff's request was directed by, ratified through, or executed pursuant to an unwritten "emergency or death" office policy that he himself originated, maintained, or enforced as an underground regulation, he is additionally liable for the implementation of that policy as to Plaintiff.

14. **Defendant Macomber.** Defendant JEFF MACOMBER ("Macomber") is the Secretary of the California Department of Corrections and Rehabilitation, with department-wide authority over parole policies, including parole travel policies and the standards governing approval and denial of travel requests by parolees. He is sued in his official capacity solely for purposes of prospective declaratory and injunctive relief in his role as the official with authority to terminate the enforcement of the unwritten travel policy challenged herein.

15. **Defendant CDCR.** Defendant CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION ("CDCR") is a public entity of the State of California established by Government Code section 12838. CDCR is vicariously liable under Government Code section 815.2(a) for the in-scope acts and omissions of Defendants Rojo and Noguchi, and is directly liable under Government Code section 815.6 for breach of mandatory duties imposed by published CDCR travel-approval policies. CDCR is also a proper party to the declaratory-relief count.

16. **DOE Defendants.** Plaintiff is presently unaware of the true names and capacities of Defendants sued herein as DOES 1 through 20, inclusive, who are or may be other agents, supervisors, administrators, or policymakers within CDCR who participated in, ratified, originated, enforced, or failed to correct the unlawful conduct alleged. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained.

17. **Agency and ratification.** At all relevant times, each Defendant acted as the agent, servant, employee, partner, joint venturer, alter ego, or co-conspirator of each other Defendant, and in performing the acts alleged was acting within the course and scope of such relationship and with the actual or apparent authority, knowledge, consent, and ratification of each other Defendant.

III. FACTUAL ALLEGATIONS

A. Plaintiff's Sincerely Held Religious Beliefs

18. Plaintiff is a practicing Christian. His religious faith is sincere, deeply held, and central to his identity and daily life. Participation in significant church events -- and particularly anniversary celebrations of his parents' ministry -- is a core expression of his religious devotion.

19. Plaintiff's parents are pastors who founded and currently lead a Christian church in Reno, Nevada. The annual anniversary of that ministry is a religious observance of unique personal and spiritual significance to Plaintiff, marked by formal worship, communion, intergenerational testimony, and the gathering of an extended faith community.

20. **Prior approved travel as comparator.** In 2021, while under the supervision of a different parole agent within the same Stockton Parole Unit, Plaintiff was granted permission to travel to Reno to attend a service at the same church. Plaintiff complied fully with all conditions during and after that approved travel. The 2021 approval establishes that out-of-state religious travel by Plaintiff to attend his parents' church is fully consistent with legitimate parole-supervision objectives, poses no public-safety risk, and was historically accommodated by CDCR. The November 2025 denial reflects no change in Plaintiff's risk profile, only a change in the identity of the supervising agent and the supervising supervisor.

B. Plaintiff's November 17, 2025 Travel Request Packet

21. **The religious occasion.** Plaintiff's parents' church scheduled its Nineteenth Church Anniversary celebration for November 21 -- 23, 2025, in Reno, Nevada. Plaintiff was specifically invited; his attendance was an integral part of the observance; and his absence would (and ultimately did) constitute a complete deprivation of religious participation and familial association at a one-time, non-repeatable annual event.

22. **The packet.** On November 17, 2025, Plaintiff personally hand-delivered a complete travel-request packet to Defendant Rojo at the Stockton Parole Unit. The packet included, without limitation: (a) an official church anniversary flyer documenting the religious nature, location, and dates of the event (Exhibit B); (b) a pre-purchased Greyhound bus ticket evidencing planned, lawful, compliant transportation (Exhibit C); and (c) a written request specifying the dates of travel, the destination, the religious purpose, and the familial purpose. Plaintiff's submission complied with every published CDCR parole travel requirement. No deficiency was identified to him then or thereafter.

23. **Confirmation of receipt.** Defendant Rojo accepted the packet on November 17, 2025, and represented orally to Plaintiff that it would be processed in the ordinary course.

C. Defendants' November 19 -- 20, 2025 Misrepresentations and Induced Reliance

24. **Telephone confirmation -- November 19, 2025.** On November 19, 2025, Defendant Rojo telephoned Plaintiff. She confirmed that she had received the travel-request packet and stated that she would submit it to administration for approval. She made no mention of any "emergency or death in the family" restriction. She made no mention of the ankle monitor. She raised no objection to any aspect of the proposed travel. The representation that the packet was being submitted for administrative review was a representation of fact -- specifically, a

representation that an administrative-approval process was underway -- on which Plaintiff was intended to, and did, rely.

25. **Hotel-address compliance -- November 19, 2025.** That same morning, in further good-faith compliance with what Plaintiff understood to be a normal administrative process, Plaintiff provided Defendant Rojo with the address of the Reno hotel where he would be staying, so that monitoring continuity could be coordinated. Rojo accepted this information without objection.

26. **The Rojo text message -- November 19, 2025.** Later on November 19, 2025, Defendant Rojo sent Plaintiff the following text message, preserved verbatim and attached as Exhibit A: *"Okay thank you I'll submit that pass and see what administration says."* This written representation -- made in the same medium Plaintiff and Rojo routinely used for compliance communications -- repeated and reinforced the prior oral representation that an administrative-approval process was underway, would be conducted, and would produce a communicated decision.

27. **Concealment and continuing assurance -- November 20, 2025.** On November 20, 2025, Plaintiff requested a status update. Defendant Rojo represented that she would visit Plaintiff that day to discuss the matter. She did not appear. She provided no explanation for her absence. She provided no status update. On information and belief, by November 20, 2025, Defendants had already decided internally to deny the request and were deliberately withholding that decision from Plaintiff to foreclose any window for supervisory review or remedy.

28. **Reasonable and detrimental reliance.** Plaintiff justifiably relied on Defendants' representations. He refrained from contacting a parole supervisor higher in the chain of command, from contacting the CDCR Office of Internal Affairs, from contacting a chaplain liaison, from seeking emergency administrative review, from canceling his Greyhound ticket, from canceling

the Reno hotel, and from making alternative plans. His family likewise relied: they purchased provisions, took time off work, and assembled at his residence on November 21, 2025 to depart with him. Had Plaintiff been told the truth on November 19, 2025 -- that the request was being denied or had been internally denied -- he would have escalated administratively, mitigated economic loss, sought any available accommodation, and avoided the public humiliation of a doorstep denial in front of his family.

D. The November 21, 2025 Doorstep Denial

29. **The ambush.** On November 21, 2025 -- the day of departure for Reno -- Defendant Rojo did not call, did not text, and did not summon Plaintiff to the parole office. Instead, she drove to Plaintiff's residence at 1455 Cat Tail Drive, Stockton, California 95204, and appeared unannounced at his front door at the precise moment Plaintiff's family was physically loading vehicles and preparing to depart. Plaintiff's parents, who had driven down from Reno, were standing in the driveway. The Greyhound ticket was in Plaintiff's hand. The hotel reservation was confirmed. The church service was hours away. Only at that moment did Rojo inform Plaintiff that the travel request had been denied by Defendant Noguchi.

30. **Engineered timing.** The timing of this disclosure was not accidental or innocent. It was structurally designed -- intentionally, or in the alternative with reckless indifference to its certain effect -- to foreclose every practical avenue of relief. There was no time to telephone a supervisor above Defendant Noguchi. There was no time to request expedited administrative review. There was no time to contact a chaplain. There was no time to file a habeas petition. There was no time to seek a temporary restraining order. There was no time to obtain alternative permission. The structure of the timing converted an administrative decision into an irrevocable deprivation of liberty, religious exercise, and familial association in front of Plaintiff's family.

31. **The pretextual "emergency or death" justification.** Defendant Rojo stated that the

denial was based on an alleged office policy limiting out-of-state travel to "an emergency or a death in the family." This alleged policy appears nowhere in CDCR's published parole conditions, nowhere in Title 15 of the California Code of Regulations, nowhere in CDCR's published Operations Manual, and nowhere in any document Plaintiff was ever provided. Defendants did not produce, then or thereafter, any written policy, citation, regulation, directive, or other authority supporting the denial. The "emergency or death" formulation is, on information and belief, an underground regulation -- an unwritten rule of general application enforced as if it were a regulation, in violation of Government Code section 11340.5.

32. **The pretextual "ankle monitor" justification.** Defendant Rojo additionally cited Plaintiff's ankle monitor as justification for the denial -- for the first time, at the moment of denial. The ankle monitor had never previously been raised, in any of the four days of prior communications, as an impediment to travel. Plaintiff had provided the Reno hotel address on November 19, 2025 specifically to enable continued GPS-monitoring connectivity. Defendants proposed no means by which monitoring could be accommodated for the approved trip, no test of connectivity in Reno, and no alternative monitoring technology -- consistent with the pretextual rather than substantive nature of the citation.

33. **No notice. No standards. No hearing.** Defendants provided Plaintiff with no prior notice of the alleged "emergency or death" policy. They provided no published standards governing its application. They provided no opportunity to be heard before the denial issued. They provided no written decision after the denial issued. They provided no information about administrative appeal rights -- because none existed within any timeframe in which relief could be obtained.

E. Disparate Treatment of Religious Travel

34. **Comparator evidence.** Upon information and belief, parolees under Defendants'

supervision (or under supervision elsewhere within the Stockton Parole Unit) were permitted to travel out of state for non-religious purposes -- including for employment, family logistics, medical appointments, vehicle pickups, and other secular reasons -- under comparable or less restrictive circumstances than those imposed on Plaintiff's religious-travel request. The application of the unwritten "emergency or death" restriction exclusively or disproportionately to religious travel, while permitting comparable secular travel, demonstrates that the policy as applied is not neutral and not generally applicable within the meaning of *Employment Division v. Smith* (1990) 494 U.S. 872, 884 -- 885, and *Tandon v. Newsom* (2021) 593 U.S. 61, 62 -- 63.

35. **Individualized-assessment failure.** Even if the unwritten "emergency or death" policy were a neutral rule of general applicability -- which it is not -- the categorical denial of Plaintiff's request without any individualized assessment of his particular circumstances, his demonstrated 2021 compliance history, his pre-purchased compliant transportation, his disclosed hotel address, or his cooperation with monitoring requirements, separately offends settled California and federal free-exercise principles. *See Fulton v. City of Philadelphia* (2021) 593 U.S. 522, 533 -- 534 (individualized exemption mechanism triggers strict scrutiny when religious exercise is excluded).

F. Damages -- Religious Deprivation, Emotional Distress, and Economic Loss

36. **Complete religious deprivation.** As a direct and proximate result of Defendants' conduct, Plaintiff was completely deprived of attendance at his parents' Nineteenth Church Anniversary -- a one-time, non-repeatable religious observance. He was unable to participate in worship, communion, the formal anniversary service, the gathering of the faith community, or the testimony portions of the event. This deprivation cannot be remediated by any future approval, because the observance has passed.

37. **Familial-association deprivation.** Plaintiff was separated from his parents at a

meaningful family occasion. His parents, who had driven down from Reno, departed from his driveway without him. The separation at the moment of denial -- with the family physically present and prepared to travel -- caused acute and lasting harm to Plaintiff's familial relationships.

38. **Severe emotional distress.** Plaintiff suffered, and continues to suffer, severe emotional distress, including acute humiliation, powerlessness, helplessness, public embarrassment in front of his family, sleep disruption, anxiety, depressive symptoms, hypervigilance, and a profound and lingering sense of having been deliberately manipulated by persons holding supervisory power over his liberty. The deliberate and calculated manner in which the denial was delivered -- on the doorstep, in front of the departing family -- is itself a source of distinct emotional harm, separate from the underlying deprivation.

39. **Economic loss.** Plaintiff suffered out-of-pocket economic losses including, without limitation, the cost of the pre-purchased Greyhound bus ticket (non-refundable), incidental travel preparations, and ancillary expenses incurred in justifiable reliance on Defendants' November 17 -- 20 representations that the request was being processed.

40. **Reputational harm.** Plaintiff suffered reputational harm before his family and community, who personally witnessed a uniformed parole agent appear at his doorstep at the moment of departure to deliver a verbal denial of a religious-travel request.

FIRST CAUSE OF ACTION

TOM BANE CIVIL RIGHTS ACT (Cal. Civ. Code section 52.1)
(Against Defendants Rojo and Noguchi)

41. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

42. **Statutory framework.** California Civil Code section 52.1 -- the Tom Bane Civil Rights Act -- creates a private right of action against any person who, whether or not acting under color of law, interferes, or attempts to interfere, by threat, intimidation, or coercion, with the exercise or enjoyment by any individual of rights secured by the Constitution or laws of the United States or of California. Section 52.1 reaches both physical and non-physical coercion. (*Cornell v. City and County of San Francisco* (2017) 17 Cal.App.5th 766, 802.) The coercion need not be wholly separate from the underlying constitutional deprivation; the requisite separateness is satisfied where the defendant's coercive conduct manifests a *specific intent* to violate the right. (*Reese v. County of Sacramento* (9th Cir. 2018) 888 F.3d 1030, 1043 -- 1045; *B.B. v. County of Los Angeles* (2020) 10 Cal.5th 1, 9 -- 11.) Specific intent may be inferred from reckless disregard of a known constitutional right. (*Cornell*, supra, 17 Cal.App.5th at p. 803.)

43. **Protected rights.** Plaintiff possessed, at all relevant times, the following clearly established rights: (a) free exercise of religion under the First Amendment to the United States Constitution (applied to the states through the Fourteenth Amendment) and Article I, Section 4 of the California Constitution, including the right to attend his parents' church anniversary; (b) due process of law under the Fourteenth Amendment and Article I, Section 7(a) of the California Constitution, including the right not to be deprived of liberty by deceit, secret policy, or arbitrary state action without notice or opportunity to be heard; and (c) familial association under the First and Fourteenth Amendments and the California Constitution.

44. **Coercive interference -- the four-day deception.** Defendants Rojo and Noguchi interfered with each of these rights by coercive means independent of, and in addition to, any decisional act of denial: (a) by making repeated false representations on November 17, November 19, and November 20, 2025 that Plaintiff's travel request was being processed through administrative channels and would receive a decision; (b) by concealing the denial internally while continuing to represent that the request was under active review; (c) by withholding notification of the denial until the moment Plaintiff's family was physically departing for Reno --

a timing calculated to foreclose every avenue of relief; (d) by applying, as the asserted basis for denial, an unwritten and unpublished "emergency or death in the family" policy never disclosed to Plaintiff; (e) by raising the ankle monitor as a pretextual justification at the moment of denial after four days of cooperative communication in which it was never mentioned; and (f) by providing no written decision, no statement of reasons, no notice of appeal rights, and no opportunity to be heard before or after the denial. **Implicit threat dimension.** Plaintiff reasonably understood Defendant Rojo's unannounced appearance at his residence -- in her official supervisory capacity, on the day of departure, at the moment his family was loading vehicles -- as an implicit threat that any attempt to travel without express written authorization would be treated as a parole violation subject to arrest, custody, and revocation. The implicit threat leveraged Defendants' state-backed custodial authority and coerced Plaintiff's immediate forbearance from departure under conditions where his compliance with the religious-travel plan would otherwise have been routine but for the engineered timing of disclosure.

45. **The Reese separateness requirement is met.** The coercive conduct alleged in paragraph 44 -- the four days of affirmative misrepresentation, the deliberate concealment, the engineered doorstep timing, the deployment of an underground regulation, and the pretextual ankle-monitor citation -- is conceptually and temporally separate from the underlying decision to deny the request. A denial communicated in writing on November 19, 2025 stating a published policy basis, with notice of appeal rights, would have been a different act than the act that occurred. The Bane Act reaches the manner of denial, which was coercive, deceptive, and engineered to foreclose recourse. The required showing of specific intent to violate the right -- or of reckless disregard from which specific intent may be inferred -- is amply supported by the documentary record (Exhibit A) and by the engineered timing of the doorstep delivery.

46. **Causation.** Defendants' coercive interference was the actual and proximate cause of Plaintiff's deprivation of religious participation, familial association, and liberty interest in being free from arbitrary state action. But for the four-day deception and the engineered timing of the

denial, Plaintiff would have had a meaningful opportunity to escalate administratively, mitigate economic loss, and -- consistent with the 2021 precedent -- secure approval for the religious travel.

47. **Remedies.** Plaintiff is entitled, against Defendants Rojo and Noguchi in their individual capacities, to: (a) compensatory damages for the harms alleged in paragraphs 36 -- 40; (b) statutory penalties and a civil penalty of up to three times the amount of actual damages, pursuant to Civil Code section 52(a); (c) punitive damages under Civil Code section 3294; and (d) reasonable attorneys' fees and costs pursuant to Civil Code sections 52(b) and 52.1(i).

SECOND CAUSE OF ACTION

INTENTIONAL MISREPRESENTATION / DECEIT

(Cal. Civ. Code sections 1709, 1710(1)) -- (Against Defendant Rojo)

48. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

49. **Elements.** The elements of fraud/intentional misrepresentation under Civil Code sections 1709 and 1710(1) are: (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

50. **The misrepresentations.** Defendant Rojo made the following material misrepresentations of fact to Plaintiff: (a) on November 17, 2025, that the travel-request packet would be processed in the ordinary course; (b) on November 19, 2025, by telephone, that she was submitting the request to administration for approval; (c) on November 19, 2025, by text message, *"Okay thank you I'll submit that pass and see what administration says"* (Exhibit A);

and (d) on November 20, 2025, that she would visit Plaintiff that day to discuss the request. Each was a representation that an administrative-approval process was underway and would yield a communicated decision in time to permit administrative response.

51. **Knowledge of falsity / scienter.** Upon information and belief, each of these representations was false when made, or in the alternative was made with reckless indifference to its truth. By November 19, 2025, Defendant Rojo knew or had reason to know -- based on her own supervisor's instructions, her familiarity with the unwritten "emergency or death" rule, and her experience with prior similar requests -- that the request had been or would be denied, and that the four-day delay was strategic rather than substantive. The selection of a doorstep, day-of-departure timing for the verbal denial, in lieu of any earlier written disposition, is consistent only with knowledge that the request was destined for denial and that earlier disclosure would have invited supervisory escalation.

52. **Intent to induce reliance.** Defendant Rojo made each representation with intent to induce, and did induce, Plaintiff's reliance and forbearance -- specifically, his forbearance from escalating administratively, contacting higher supervision, contacting counsel, contacting a chaplain, canceling travel logistics, or making any alternative arrangement during the four-day window in which such efforts could have produced relief.

53. **Justifiable reliance.** Plaintiff justifiably relied on Defendant Rojo's representations. She was his assigned parole agent. Their prior communications had been routine and reliable. Her text messages were her routine compliance channel. There was no reason for Plaintiff to suspect that his assigned parole agent was deceiving him about whether his request was being administratively processed. Plaintiff's reliance was reasonable under all the circumstances and was the direct cause of his forbearance during the dispositive four-day window.

54. **Damages.** As a direct and proximate result of his justifiable reliance, Plaintiff suffered

the damages alleged in paragraphs 36 -- 40, including out-of-pocket economic loss (pre-purchased Greyhound ticket, hotel reservation, ancillary expenses), severe emotional distress, deprivation of religious participation, and deprivation of familial association.

55. **Punitive damages.** Defendant Rojo's conduct was willful, malicious, oppressive, and undertaken with conscious disregard of Plaintiff's rights, within the meaning of Civil Code section 3294. Punitive and exemplary damages in an amount sufficient to punish and deter are sought against her in her individual capacity.

THIRD CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Against Defendants Rojo and Noguchi)

56. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

57. **Elements.** The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress suffered by the plaintiff; and (4) actual and proximate causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050 -- 1051.) Conduct is particularly likely to be deemed outrageous when committed by a defendant in a position of authority over the plaintiff. (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 498 -- 499.)

58. **Extreme and outrageous conduct.** Defendants Rojo and Noguchi engaged in the following extreme and outrageous conduct, which exceeds all bounds of decency tolerable in a civilized community: (a) making repeated false representations over four days that Plaintiff's request was being actively processed; (b) allowing Plaintiff and his family to prepare for

departure, purchase non-refundable transportation, and arrange logistics in reliance on those representations; (c) concealing the denial internally while representing externally that the request was under active review; (d) staging a doorstep confrontation at Plaintiff's residence at the precise moment his family was physically departing -- in front of his parents -- to verbally deliver a previously concealed denial; (e) basing the denial on an unwritten and never-disclosed "emergency or death" rule; and (f) raising a pretextual "ankle monitor" justification at the moment of denial. The conduct was made worse by Defendants' authority as parole officials -- persons holding life-altering custodial power over Plaintiff.

59. **Intent or reckless disregard.** A reasonable person in Defendants' position would recognize that engineering a doorstep denial of a religious-travel request -- at the precise moment the parolee's family is departing -- would inflict severe emotional distress. Defendants acted with intent, or at minimum with reckless disregard of, the certainty of that result. The engineered timing supplies, by itself, the inference of intent or reckless disregard.

60. **Severe emotional distress.** Plaintiff suffered severe emotional distress as alleged in paragraph 38, including acute humiliation, powerlessness, public embarrassment in front of his family, sleep disruption, anxiety, depressive symptoms, hypervigilance, and a lingering sense of having been deliberately manipulated by persons in custodial authority.

61. **Punitive damages.** Defendants' conduct was willful, malicious, oppressive, and undertaken with conscious disregard of Plaintiff's rights, within the meaning of Civil Code section 3294. Punitive damages in an amount sufficient to punish and deter are sought against Defendants Rojo and Noguchi in their individual capacities. Punitive damages are not sought against CDCR. (Gov. Code section 818.)

FOURTH CAUSE OF ACTION

NEGLIGENT MISREPRESENTATION (Cal. Civ. Code section 1710(2))

(Against Defendant Rojo -- pleaded in the alternative to the Second Cause of Action)

62. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein, and pleads this Cause of Action in the alternative to the Second Cause of Action for Intentional Misrepresentation.

63. **Elements.** California Civil Code section 1710(2) defines deceit to include the assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true. The elements of negligent misrepresentation are: (1) a misrepresentation of a past or existing material fact; (2) without reasonable ground for believing it to be true; (3) made with intent to induce another's reliance on it; (4) justifiable reliance; and (5) resulting damage. (*Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.)

64. **Misrepresentation without reasonable ground.** Even if Defendant Rojo did not subjectively know her representations were false, she had no reasonable ground for representing that the request was being processed through administration and would receive a timely communicated decision. Rojo did not first confirm with Defendant Noguchi -- who held final approval authority -- that the request was, in fact, being administratively processed; she did not confirm that any administrative timeline existed; and she had no basis on which to assure Plaintiff that the request would be "submit[ted]" and that an administrative decision would be communicated. To the extent Rojo had heard her supervisor express -- expressly or by hint -- that the request would be denied under the unwritten "emergency or death" rule, she had affirmative reason to know that her representations were untrue when she made them.

65. **Reliance and damages.** Plaintiff justifiably relied on Defendant Rojo's representations and suffered the damages alleged in paragraphs 36 -- 40.

FIFTH CAUSE OF ACTION

NEGLIGENCE (Gov. Code sections 815.2, 815.6, 820)

(Against All Defendants)

66. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

67. **Duty.** Each individual Defendant owed Plaintiff a duty of reasonable care arising from: (a) the custodial authority exercised over him as a parolee; (b) the mandatory ministerial duties imposed by California Code of Regulations, Title 15, Division 2 (Parole), the CDCR Department Operations Manual, Chapter 8 (Parole), governing parolee travel approvals, and the published Notice and Conditions of Parole (CDCR Form 1515) executed by Plaintiff, all of which require timely processing of properly submitted travel requests, individualized written assessment of the circumstances of each request, and written notification of approvals and denials, framed in mandatory "shall" terms rather than discretionary "may" terms; (c) the general duty of reasonable care owed by every public employee for injury proximately caused by his or her act or omission to the same extent as a private person, under Government Code section 820(a); and (d) the affirmative duty -- imposed by their representations -- not to mislead Plaintiff into reliance and forbearance. CDCR owed Plaintiff a duty under Government Code section 815.6 to discharge the mandatory ministerial duties imposed by the foregoing regulations, manual provisions, and published procedures, and is vicariously liable under Government Code section 815.2(a) for the negligent acts and omissions of its employees acting within the scope of employment.

68. **Breach.** Each Defendant breached the duty of care: (a) Rojo by misrepresenting the status of the request; by failing to disclose the unwritten "emergency or death" policy at any point during the four-day window; by failing to provide timely written notice of any denial; and by engineering the doorstep timing; (b) Noguchi by failing to issue any written decision; by relying on an underground regulation; by failing to provide individualized assessment; by failing to

consider, document, or respond to the 2021 prior approval as a comparator; and by directing or permitting the engineered timing of the verbal denial; and (c) CDCR by failing to ensure that its parole agents follow published travel-approval procedures and by maintaining or tolerating the underground "emergency or death" rule at the Stockton Parole Unit.

69. **Ministerial, not discretionary.** The duties breached are ministerial, not discretionary. The duty to provide a timely written decision, the duty to apply only published rules, the duty to conduct individualized assessment, and the duty not to deceive a parolee about the status of his administrative request, are not policy-laden discretionary functions within the meaning of Government Code section 820.2. (*Caldwell v. Montoya* (1995) 10 Cal.4th 972, 981.) Government Code section 820.4 does not exonerate a public employee from liability for false imprisonment, deceit, or other intentional torts.

70. **Causation and damages.** Each breach was a substantial factor in causing Plaintiff's harm as alleged in paragraphs 36 -- 40. A reasonable parole agent, supervisor, and department in each Defendant's position would have recognized that the manner of denial -- four days of misrepresentation followed by an engineered doorstep delivery -- created a foreseeable risk of severe emotional distress, complete religious deprivation, familial-association harm, and economic loss.

SIXTH CAUSE OF ACTION

DECLARATORY AND INJUNCTIVE RELIEF (Code Civ. Proc. section 1060)
(Against CDCR and Defendant Macomber in His Official Capacity)

71. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

72. **Actual controversy.** An actual, present, and justiciable controversy exists between

Plaintiff and Defendants CDCR and Macomber concerning: (a) whether the unwritten "emergency or death in the family" travel-restriction rule applied to Plaintiff is a properly adopted regulation or an underground regulation prohibited by Government Code section 11340.5; (b) whether CDCR may, consistent with the California Constitution (art. I, sections 4, 7(a)) and the First and Fourteenth Amendments, deny religious-travel requests without an individualized written assessment stating the factual and regulatory basis for the denial, with reasonable advance notice; (c) whether CDCR may apply, in practice, a more restrictive standard to religious-travel requests than to comparable secular travel; and (d) whether Plaintiff is entitled, prospectively, to procedural safeguards in the processing of any future travel request implicating fundamental rights.

73. **Ongoing harm; capable of repetition yet evading review.** Plaintiff remains on parole and remains subject to future application of the same unwritten policy by the same Stockton Parole Unit personnel. Absent prospective declaratory and injunctive relief, there is a real and immediate threat that Plaintiff will again be subject to the same unconstitutional and underground rule. The harm is not speculative; the same policy will govern any future religious-travel request Plaintiff submits, until and unless declaratory or injunctive relief is granted. The controversy is moreover capable of repetition yet evading review: religious observances and family events occur within fixed and non-extendable time windows, the engineered last-minute denial pattern compresses any response window below the time required for meaningful judicial review, and Plaintiff would be subject to the same engineered timing in any future request, foreclosing case-by-case judicial supervision absent prospective relief.

74. **Requested declarations.** Plaintiff seeks a judicial declaration that:

a. The unwritten "emergency or death in the family" travel-restriction rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable as to Plaintiff;

b. CDCR's denial of Plaintiff's November 17, 2025 travel request is void as a matter of law because it rested on an underground regulation, was not communicated in writing, was not based on an individualized assessment, was not preceded by notice or opportunity to be heard, and was applied non-neutrally as to religious exercise;

c. CDCR's enforcement of any unwritten travel-restriction policy that (i) is not neutral or generally applicable, (ii) lacks individualized assessment, (iii) affords no prior notice or opportunity to be heard, or (iv) is applied through deception, violates the California Constitution and the United States Constitution as applied to Plaintiff; and

d. Plaintiff is entitled, prospectively, to timely written, individualized, regulation-based assessments of any future travel request implicating fundamental rights, communicated with sufficient advance notice to permit administrative review.

75. **Requested injunctive relief.** Plaintiff seeks a permanent injunction requiring Defendant Macomber, CDCR, and their agents and successors-in-office to: (a) refrain from enforcing the unwritten "emergency or death" rule against Plaintiff or any other parolee; (b) provide written, individualized, regulation-based assessments of all parole travel requests implicating fundamental rights; (c) communicate any denial with sufficient advance notice to permit administrative review; and (d) implement the procedural safeguards required by the California Constitution and the United States Constitution.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for judgment in his favor and against Defendants, and each of them, as follows:

A. Compensatory Damages

1. Against Defendants Rojo and Noguchi, and against CDCR vicariously under Government Code section 815.2(a), on the First, Third, and Fifth Causes of Action: compensatory damages for severe emotional distress, complete deprivation of religious participation, deprivation of familial association, reputational harm, and economic loss, according to proof at trial;

2. Against Defendant Rojo, and against CDCR vicariously, on the Second Cause of Action (Intentional Misrepresentation), or in the alternative on the Fourth Cause of Action (Negligent Misrepresentation): compensatory damages including the cost of pre-purchased non-refundable transportation, hotel and ancillary expenses, and all consequential economic loss attributable to Plaintiff's justifiable reliance, according to proof at trial; and

3. Future general damages, including future emotional distress, consequential mental and physical harm, and the reasonable cost of future treatment reasonably certain to be suffered or required, according to proof at trial;

4. Nominal damages on each cause of action sufficient to vindicate Plaintiff's constitutional, statutory, and common-law rights, in the event general or special damages on any count are limited or precluded; and

5. All other past and future general and special damages according to proof at trial.

B. Statutory Treble Damages and Civil Penalties

1. On the First Cause of Action (Tom Bane Civil Rights Act, Cal. Civ. Code

section 52.1), against Defendants Rojo and Noguchi: a civil penalty of up to three (3) times the amount of actual damages pursuant to Civil Code section 52(a), together with any additional statutory penalty authorized by law.

C. Punitive and Exemplary Damages

1. Punitive and exemplary damages against each named individual Defendant (Rojo and Noguchi) in his or her individual capacity in an amount sufficient to punish and deter, pursuant to Civil Code section 3294, based on conscious disregard of Plaintiff's rights, including without limitation: (a) Rojo's affirmative misrepresentations of November 17 -- 20, 2025; (b) Noguchi's authorization of the engineered doorstep denial; (c) both Defendants' deployment of an underground "emergency or death" rule; and (d) both Defendants' refusal to provide written notice, individualized assessment, or any opportunity for administrative review. The punitive damages sought shall be proportionate to each individual Defendant's financial condition and sufficient to deter similar conduct by CDCR parole staff statewide. Punitive damages are not sought against CDCR. (Gov. Code section 818.)

D. Declaratory Relief

1. A judgment declaring that the unwritten "emergency or death in the family" travel-restriction rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable as to Plaintiff;

2. A judgment declaring that CDCR's November 21, 2025 denial of Plaintiff's travel request is void as a matter of law;

3. A judgment declaring that CDCR's enforcement of any unwritten parole

travel-restriction policy that is non-neutral, lacks individualized assessment, affords no prior notice or opportunity to be heard, or is applied through deception, violates the California Constitution and the United States Constitution; and

4. A judgment declaring Plaintiff's prospective right to timely written, individualized, regulation-based assessment of any future travel request implicating fundamental rights.

E. Permanent Injunctive Relief

1. A permanent injunction enjoining Defendant Macomber, CDCR, and their agents and successors-in-office from enforcing the unwritten "emergency or death" rule against Plaintiff;

2. A permanent injunction requiring Defendant Macomber, CDCR, and their agents and successors-in-office to provide timely, written, individualized, regulation-based assessments of all parole travel requests implicating fundamental rights, communicated with sufficient advance notice to permit administrative review; and

3. A permanent injunction requiring CDCR to expunge from Plaintiff's parole file any notation, characterization, finding, or implication that Plaintiff attempted to travel against policy, violated travel conditions, or engaged in non-compliant conduct in connection with the November 17 -- 21, 2025 episode, so that future travel requests and any future parole decisions are not prejudiced by mischaracterization of these facts.

F. Attorneys' Fees and Costs

1. Reasonable attorneys' fees and costs pursuant to Civil Code sections 52(b) and

52.1(i), Code of Civil Procedure section 1021.5, and any other applicable statute, to the extent Plaintiff retains counsel during the pendency of this action or thereafter;

2. Costs of suit incurred herein.

G. Interest

1. Pre-judgment and post-judgment interest as permitted by law, including under Civil Code section 3287 and any applicable provisions of the Government Code.

H. Preservation of Evidence

1. An order directing each Defendant and CDCR to preserve, and to direct their officers, agents, employees, and contractors to preserve, all electronic and written communications -- including without limitation emails, text messages, voicemails, calendar entries, handwritten notes, internal memoranda, supervisory directives, and any audio or video recordings -- among CDCR personnel concerning: (a) Plaintiff's November 17 -- 21, 2025 travel request; (b) any unwritten or unpublished travel-restriction practice or policy at the Stockton Parole Unit, including the "emergency or death in the family" rule; and (c) all parole travel-request approvals and denials at the Stockton Parole Unit during the period January 1, 2024 through entry of final judgment in this action.

I. Further Relief

1. Such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable pursuant to California Constitution, article I, section 16, and California Code of Civil Procedure section 592.

Dated: July 7, 2026

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Plaintiff in the above-entitled action. I have read the foregoing Verified Complaint for Damages, Declaratory, and Injunctive Relief and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 7, 2026,
at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

The following documents are referenced in this Verified Complaint. Exhibits marked *[Attached]* are appended hereto and incorporated by reference as though fully set forth. Exhibits marked *[Incorporated by Allegation]* are referenced in the pleadings and will be produced in discovery and offered at trial.

Exhibit A -- Text message from Defendant Joseelyn Rojo to Plaintiff dated November 19, 2025: "Okay thank you I'll submit that pass and see what administration says." *[Attached.]*

Exhibit B -- Official flyer for the Nineteenth Church Anniversary celebration, Reno, Nevada, November 21 -- 23, 2025. *[Incorporated by Allegation.]*

Exhibit C -- Greyhound bus ticket pre-purchased by Plaintiff for travel from Stockton, California to Reno, Nevada for the November 21 -- 23, 2025 religious observance. *[Incorporated by Allegation.]*

Exhibit D -- Documentation of the 2021 CDCR-approved religious travel by Plaintiff to the same church in Reno, Nevada, demonstrating prior departmental accommodation of materially identical travel. *[Incorporated by Allegation.]*

Exhibit E -- Verified Government Tort Claim presented May 19, 2026 to the California Government Claims Program, together with the Government Claims Online Filing Fee Receipt dated May 19, 2026 (Confirmation Number 26051930365359), demonstrating compliance with the Government Claims Act. *[Attached.]*